

PROPOSED
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2270
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 11-251.17, Arizona Revised Statutes, is amended
3 to read:

4 11-251.17. Use of county seal, logo or insignia restricted;
5 cease and desist order; violation;
6 classification

7 A. A person may use, display or otherwise employ any facsimile,
8 copy, likeness, imitation or other resemblance of the county seal, LOGO OR
9 INSIGNIA OR ANOTHER VISUAL OR TEXTUAL IDENTIFIER OF A COUNTY OFFICE,
10 WHETHER IDENTICAL OR SUBSTANTIALLY SIMILAR, THAT COULD IMPLY AFFILIATION
11 WITH A COUNTY OFFICE only after obtaining the approval of the board of
12 supervisors of that county OR THE ELECTED OFFICIAL IN CONTROL OF THE
13 COUNTY OFFICE. The board of supervisors OR THE ELECTED OFFICIAL IN
14 CONTROL OF THE COUNTY OFFICE may grant a certificate of approval on
15 application by any person showing good cause for the use of the county
16 seal, LOGO OR INSIGNIA OR ANOTHER VISUAL OR TEXTUAL IDENTIFIER OF A COUNTY
17 OFFICE for a proper purpose. No person other than a county department may
18 use the county seal ~~for the purpose of advertising or promoting~~, LOGO OR
19 INSIGNIA OR ANOTHER VISUAL OR TEXTUAL IDENTIFIER OF A COUNTY OFFICE TO
20 ADVERTISE OR PROMOTE the sale of any article of merchandise within this
21 state or for promoting any other commercial purpose. The board of
22 supervisors may adopt rules for the use of the county seal, LOGO OR
23 INSIGNIA OR ANOTHER VISUAL OR TEXTUAL IDENTIFIER OF A COUNTY OFFICE or any
24 facsimile, copy, likeness, imitation or other resemblance of the county
25 seal, LOGO OR INSIGNIA OR ANOTHER VISUAL OR TEXTUAL IDENTIFIER OF A COUNTY
26 OFFICE, including rules for the use of the county seal, LOGO OR INSIGNIA

1 OR ANOTHER VISUAL OR TEXTUAL IDENTIFIER OF A COUNTY OFFICE for official
2 county business.

3 B. If the county maintains a website, it shall display on its
4 website the adopted seal, LOGO OR INSIGNIA and the text of subsection A of
5 this section.

6 C. The board of supervisors shall issue a cease and desist order to
7 any person who is in violation of this section. If the person fails to
8 comply with the cease and desist order, the person is guilty of a class 3
9 misdemeanor.

10 Sec. 2. Section 11-441, Arizona Revised Statutes, is amended to
11 read:

12 11-441. Powers and duties

13 A. The sheriff shall:

14 1. Preserve the peace.

15 2. Arrest and take before the nearest magistrate for examination
16 all persons who attempt to commit or who have committed a public offense.

17 3. Prevent and suppress all affrays, breaches of the peace, riots
18 and insurrections that may come to the knowledge of the sheriff.

19 4. Attend all courts, except justice and municipal courts, when an
20 element of danger is anticipated and attendance is requested by the
21 presiding judge and obey lawful orders and directions issued by the judge.

22 5. Take charge of and keep the county jail, including a county jail
23 under the jurisdiction of a county jail district, and the prisoners in the
24 county jail.

25 6. Endorse on all process and notices the year, month, day, hour
26 and minute of reception and issue to the person delivering the process or
27 notice, on payment of fees, a certificate showing the names of the
28 parties, the title of the paper and the time of reception.

29 7. Serve process and notices in the manner prescribed by law and
30 certify under the sheriff's hand on the process or notices the manner and
31 time of service, or if the sheriff fails to make service, the reasons for
32 failure, and return them without delay. When returnable to another
33 county, the sheriff may enclose such process or notices in an envelope,
34 addressed to the officer from whom received, and deposit the envelope
35 postage prepaid in the post office. The return of the sheriff is prima
36 facie evidence of the facts stated in the return.

37 8. Secure, as soon as possible, the home of a deceased person
38 located outside the boundaries of an incorporated city or town if the
39 sheriff is unable to determine or locate the heirs or executor of the
40 deceased person.

41 B. The sheriff, in executing the duties prescribed in subsection A,
42 paragraphs 1 through 4 of this section, may command the aid of as many
43 inhabitants of the county as the sheriff deems necessary.

44 C. The sheriff shall conduct or coordinate within the county search
45 or rescue operations involving the life or health of any person or may
46 assist in such operations in another county at the request of that

1 county's sheriff. The sheriff may request assistance from any persons or
2 agencies in fulfilling duties under this subsection. A search and rescue
3 unit established or recognized by a county may possess human remains as
4 defined in section 36-301 for the purpose of training canines used for
5 search and rescue work. The sheriff or the sheriff's designee shall keep
6 an inventory of all human remains that are kept for the purpose of
7 training search and rescue canines. The inventory must be updated when
8 the search and rescue unit receives human remains or disposes of human
9 remains that are no longer useful to the search and rescue unit. Each
10 search and rescue unit that possesses human remains for the purpose of
11 training search and rescue canines shall establish policies and standard
12 operating procedures for access to, the inventory of and the possession
13 and disposal of human remains kept for the purpose of training search and
14 rescue canines.

15 D. The sheriff, in executing the duties prescribed in this section,
16 [INCLUDING THE DUTIES ENUMERATED IN SUBSECTION A OF THIS SECTION AND ANY
17 OTHER LAWFUL DUTY UNDERTAKEN BY THE SHERIFF, THE SHERIFF] may request
18 [AND USE] the aid of volunteer posse and reserve organizations located in
19 the county. [THE SHERIFF HAS EXCLUSIVE AUTHORITY TO REGULATE THE
20 ORGANIZATION AND OPERATIONAL RESOURCES OF ANY AFFILIATED AUXILIARY, POSSE
21 OR RESERVE ORGANIZATION OR MEMBERS OF THE ORGANIZATION THAT ARE ACTING IN
22 SUPPORT OF THE SHERIFF'S OFFICE, CONSISTENT WITH LAW.]

23 E. The sheriff may assist in executing the duties prescribed in
24 this section in another county at the request of that county's sheriff.

25 F. The sheriff may require any prisoner who is on work release to
26 reimburse the county for reasonable expenses incurred in connection with
27 the release.

28 G. The board of supervisors of a county bordering Mexico may adopt
29 an ordinance pursuant to chapter 2 of this title allowing the sheriff to
30 prevent the entry from this state into Mexico at the border by any
31 resident of this state who is under eighteen years of age if the minor is
32 unaccompanied by a parent or guardian or does not have written consent for
33 entry from the minor's parent or guardian. The authority of the sheriff
34 is only to prevent entry and not to otherwise detain the minor. This
35 subsection does not limit the authority of the sheriff pursuant to any
36 other law. A county is not civilly or criminally liable for not adopting
37 an ordinance pursuant to this subsection.

38 H. Notwithstanding section 13-3112, the sheriff may authorize
39 members of the sheriff's volunteer posse who have received and passed
40 firearms training that is approved by the Arizona peace officer standards
41 and training board to carry a deadly weapon without a permit while on
42 duty.

43 I. THE SHERIFF HAS THE EXCLUSIVE RIGHT TO NAME ANY POSSE THAT IS
44 ASSOCIATED WITH THE SHERIFF'S OFFICE AND TO DISSOLVE ANY POSSE THAT
45 OPERATES UNDER THE SHERIFF'S JURISDICTION.

House Amendments to H.B. 2270

- 1 Enroll and engross to conform
- 2 Amend title to conform

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